QUICK SHEET · CONSTITUTION OF THE FEDERATED REPUBLIC

# Rights & the Non-Derogable Floor

*A floor no crisis can breach. Six rights that survive any emergency intact, a presumption that puts the burden on government, and a lifecycle designed so no emergency — however it's relabeled — quietly becomes permanent.*

Article I · §1.2, §1.3–§1.4, §1.10, §1.12–§1.13, §1.16–§1.18

## THE SIX ABSOLUTE RIGHTS — §1.16.A

§1.3
### No Torture
Torture and cruel treatment, prohibited without exception.

§1.4
### No Slavery
Slavery and forced labor, prohibited without exception.

§1.10
### Habeas Corpus
The right to challenge detention before a court — never suspended.

§1.12
### Public Trial
Public trial; only narrowly necessary closure for a compelling interest (§1.12).

§1.13
### No Retroactive Punishment
No one is punished under a law written after the act.

§1.18
### Non-Refoulement
No return of a person to persecution or torture.

No emergency declaration, executive order, or legislative act may derogate any of these — and **no emergency measure may discriminate** by race, ethnicity, religion, national origin, sexual orientation, or gender identity, whatever its stated purpose.

## OFFICIAL CAPACITY PROTECTION — §7.7

### Official Capacity Protection

Constitutional officers and persons acting within the authority of a constitutional office are protected from personal civil liability for lawful acts performed within their official authority. This protection does not extend to **criminal conduct**, acts outside official authority, or **violations of this Constitution**.

## THE FLOOR BENEATH EVERYTHING — §1.2, §1.16

### The Sovereignty Floor

Every person holds an **inviolable sphere** over their own life, body, and choices, within which government authority does not reach. Where the boundary is disputed, the presumption runs **in favor of liberty** — government carries the burden of proving it has constitutional authority to limit, not the person the burden of justifying freedom.

### What an Emergency Cannot Do

No emergency suspends the Floor in full. The **three Monitors keep full authority** throughout — they cannot be suspended or reduced by declaration. Every derogation must name the emergency, the specific rights limited, the scope, and the duration; **blanket declarations are constitutionally invalid**, and every one is published to the NRS immediately.

## WHY NO EMERGENCY BECOMES PERMANENT — §1.16

DEFAULT
### Automatic Lapse
Emergency measures expire on their own at the declaration's end. Doing nothing ends the emergency.

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14 DAYS
### Then Statute
An executive declaration lasts at most 14 days. Continuing it requires an ordinary statute with a fixed expiry date — which can never be extended or renewed.

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COOLDOWN
### 60-Day Bar
No re-declaration within 60 days — a new emergency covering substantially the same scope and rights is **barred no matter how it's relabeled**. After 60 days, re-declaration requires **2/3 of both chambers**.

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ALWAYS
### Courts Stay Open
Every §1.16 derogation declaration receives independent review within 48 hours of publication. Review stays available throughout. A §2.11 continuity declaration has its separate expedited SC petition route.

## NUMBERS WORTH REMEMBERING

**6** rights are **absolute** — no emergency, order, or statute can touch them.

**60** days — the re-declaration cooldown that blocks relabeled continuations, **not** an extension window; no Declaration is ever extended.

**48** hours for **independent judicial review** of a §1.16 derogation declaration.

**0** emergency measures can be made **permanent** without re-enactment through ordinary law.



*A theoretical constitutional design project — not the law of any existing nation.*